

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. xcvi.]
Provisional Orders Confirmation (Ossett and
Wakefield Extension) Act, 1921.



CHAPTER xcvi.

An Act to confirm certain Provisional Orders of A.D. 1921.
the Minister of Health relating to Ossett and
Wakefield. [17th August 1921.]

WHEREAS the Minister of Health has made the
Provisional Orders set forth in the schedule hereto
under the provisions of the Local Government Act 1888: 51 & 52 Vict.,
c. 41.

And whereas it is requisite that the said Orders should
be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent
Majesty by and with the advice and consent of the Lords
Spiritual and Temporal and Commons in this present
Parliament assembled and by the authority of the same
as follows:—

1. The Orders as amended and set out in the schedule
hereto shall be and the same are hereby confirmed and all
the provisions thereof shall have full validity and force. Orders in
schedule
confirmed.

2. This Act may be cited as the Ministry of Health
Provisional Orders Confirmation (Ossett and Wakefield
Extension) Act 1921. Short title.

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SCHEDULE.

BOROUGH OF OSSETT.

Ossett Order. *Provisional Order made in pursuance of the Local*
Government Act 1888 for the extension
of a Borough.

51 & 52 Vict.
c. 41. WHEREAS by virtue of Section 54 of the Local Government
Act 1888 the Minister of Health is empowered to make a
Provisional Order for altering the boundary of any Borough ;

And whereas the existing Borough of Ossett in the Admin-
istrative County of the West Riding of Yorkshire is a Borough
within the meaning of the Local Government Act 1888 and the
inhabitants are a body corporate by the name of the Mayor
Aldermen and Burgesses of the Borough of Ossett and act by
the Council of the said Borough which now consists of the
Mayor (who is also a Councillor) four Aldermen and eleven
other Councillors and the said Borough is for the purposes of
the election of Councillors divided into four wards of which
one is known as the East Ward ;

And whereas the said Borough is co-extensive with the
Township of Ossett and is an Urban District under the juris-
diction of the Mayor Aldermen and Burgesses acting by the
Council ;

And whereas the said Borough has a separate commission
of the peace ;

And whereas the Council of the said Borough are the Local
Education Authority for the purposes of Part III. of the
Education Act 1902 ;

And whereas—

- (a) The unrepealed provisions of the Local Acts specified
in Part I. of the Schedule to this Order and of the
Confirmation Acts specified in Part II. of the said
Schedule so far as the last-mentioned Acts relate to
the Orders specified in that Schedule ;
- (b) The Infectious Disease (Prevention) Act 1890 ;
- (c) The Public Health Acts Amendment Act 1890 ;
- (d) The Public Libraries Acts 1892 to 1919 ; and
- (e) The Private Street Works Act 1892

are in force in the said Borough ;

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And whereas the Township of Lupset in the West Riding of Yorkshire immediately adjoins the said Borough and is a contributory place in the Rural District of Wakefield and is subject to the jurisdiction of the Rural District Council of Wakefield;

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And whereas the Township of Ossett forms part of the Dewsbury Poor Law Union and comprises the Ossett Electoral Division for the election of County Councillors and the Township of Lupset forms part of the Wakefield Poor Law Union and of the Alverthorpe Electoral Division for the election of County Councillors;

And whereas the Township of Lupset forms part of a Burial Area within which a Joint Burial Committee exercise the powers and duties of a Burial Authority under the Burial Acts 1852 to 1906;

And whereas by the Wakefield (Extension) Order 1921 it is provided that on the day upon which this Order comes into operation the boundary of the City of Wakefield shall be altered so as to include in addition to the existing City that part of the existing Township of Lupset which is not by this Order added to the Borough of Ossett and certain consequential provisions are included in the said Order:

Now therefore the Minister of Health in pursuance of the powers given to him by Sections 54 and 59 of the Local Government Act 1888 and of all other powers enabling him in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the following provisions shall take effect:—

PART I.

INTERPRETATION AND COMMENCEMENT.

1. The Interpretation Act 1889 applies to the interpretation of this Order as it applies to the interpretation of an Act of Parliament and where by this Order any enactment or any provision in an Order is repealed or is to cease to have effect in an area Section 38 of the Act of 1889 shall apply as if this Order were an Act of Parliament.

Application
of the Inter-
pretation
Act 1889.
52 & 53 Vict.
c. 63.

2. In this Order unless the context otherwise requires—

Definitions.

“The Minister” means the Minister of Health;

“The commencement of this Order” means the Ninth day of November One thousand nine hundred and twenty-one;

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"The existing Borough" means the Borough of Ossett as it exists immediately prior to the commencement of this Order ;

"The Borough" means the existing Borough as extended by this Order ;

"The Corporation" means as the context requires the Mayor Aldermen and Burgesses of the existing Borough or of the Borough acting by the Council ;

"The County" and "the County Council" mean respectively the Administrative County of the West Riding of Yorkshire and the County Council of that County ;

"The maps" means the duplicate maps marked "Map of the Borough of Ossett as extended by the Ossett (Extension) Order 1921" and sealed with the official seal of the Minister ;

"The Rural District" and "the Rural Council" mean respectively the Rural District of Wakefield and the Rural District Council of that District ;

"The Wakefield Union" "the Dewsbury Union" "the Wakefield Guardians" and "the Dewsbury Guardians" mean respectively the Wakefield Poor Law Union the Dewsbury Poor Law Union and the Guardians of those Unions ;

"The added area" means the part of the existing Township of Lupset which is coloured green on the maps ;

"The Burial area" means the area comprising the existing Parishes or Townships of Kirkhamgate and Lupset and part of the Stanley Urban District within which a Joint Burial Committee exercise the powers and duties of a Burial Authority under the Burial Acts ;

"The Township of Lupset" means the Township of Lupset as diminished by this Order ;

"The Township of Ossett" means the Township of Ossett as extended by this Order ;

"Existing" when used in relation to any district parish township or poor law union means the area as it exists immediately before the commencement of this Order ;

"The Act of 1888" and "the Act of 1894" mean respectively the Local Government Act 1888 and the Local Government Act 1894 ;

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“The Municipal Corporations Acts” means the Municipal Corporations Act 1882 and the Acts amending and extending the same and “the Public Health Acts” means the Public Health Act 1875 and the Acts amending and extending the same ;

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“The Burial Acts” means the Burial Acts 1852 to 1906 ;

“The Act of 1918” means the Representation of the People Act 1918.

3. This Order shall except so far as is otherwise herein expressly provided and except so far as there may be anything in the subject-matter or context inconsistent therewith come into operation on the Ninth day of November One thousand nine hundred and twenty-one :

Commence-
ment of
Order.

Provided that for the purposes of all proceedings preliminary or relating to any municipal election to be held on the ordinary day of election in the year One thousand nine hundred and twenty-one this Order shall operate from the date of the Act of Parliament confirming this Order.

PART II.

ALTERATIONS OF BOUNDARY.

4.—(1) The boundary of the existing Borough the area whereof is coloured pink on the maps shall be altered so as to include in addition to that area so much of the Rural District as comprises the added area.

Extension of
Borough.

(2) The boundary of the Borough shall be that shown by the red line on the maps and the whole of the area within that boundary shall for the purposes of the Municipal Corporations Acts and for all other purposes be the Borough.

5.—(1) One of the maps shall be deposited in the office of the Minister and the other shall be deposited by the town clerk of the existing Borough at his office within fourteen days after the date of this Order.

Deposit of
maps.

(2) Copies of the map deposited with the town clerk certified by him to be true shall be sent within one month after the date of the Act of Parliament confirming this Order to the Clerk of the County Council to the Clerk to the Rural Council to the Clerk to the Dewsbury Guardians to the Clerk to the Wakefield Guardians to the Board of Inland Revenue to the Commissioners of Customs and Excise to the Registrar-General to the Board of Trade to the Minister of Transport to the Minister of Agriculture and Fisheries and to the Electricity Commissioners.

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Copies of
map to be
evidence.

(3) Copies of or extracts from the map deposited with the town clerk certified by him to be true shall be received in all courts of justice and elsewhere as *primâ facie* evidence of the contents of the map so far as it relates to the boundaries of the Borough and the map shall at all reasonable times be open to inspection by any person liable to any rate leviable within the Borough and any such person shall be entitled to a copy of or extract from the map certified by the town clerk to be true on payment of a reasonable fee to be determined by the Corporation.

(4) All fees so received shall be carried to the credit of the borough fund.

Alteration of
townships
and unions.

6. The added area shall be separated from the existing Township of Lupset and cease to form part of the Rural District and of the Wakefield Union and shall be amalgamated with the existing Township of Ossett so as to form part of that Township and of the Dewsbury Union.

PART III.

PROVISIONS CONSEQUENT ON EXTENSION OF BOROUGH.

Division into
Wards.

7. Subject to the provisions of the Municipal Corporations Acts with respect to the alteration of wards the following provisions shall have effect:—

(1) For the purposes of the election of Councillors the existing East Ward shall be extended so as to include the added area:

(2) Such of the Councillors representing the existing East Ward as would have retired from office on the ordinary day of election in the years One thousand nine hundred and twenty-two and One thousand nine hundred and twenty-three shall be deemed from and after the commencement of this Order to represent that Ward as extended by this Order and shall remain in office until the day on which they would have retired if this Order had not been made.

County and
Borough Coun-
cils (Qualifica-
tion) Act 1914.
4 & 5 Geo. 5. c. 21.

8. For the purposes of the application to the Borough of the County and Borough Councils (Qualification) Act 1914 the added area shall be deemed to have always formed part of the Borough.

County
Electoral
Divisions.

9.—(1) The added area shall be included in the Ossett Electoral Division of the County and the Alverthorpe Electoral Division shall be diminished accordingly.

(2) The person who at the commencement of this Order holds office as County Councillor for the Ossett Electoral

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Division shall continue to represent the said division as extended until the day upon which he would have retired if this Order had not been made.

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10. The powers and duties of the justices of the peace appointed for the existing Borough and of the clerk to those justices shall extend to and apply throughout the Borough:

Jurisdiction
of justices
&c.

Provided that every person committing an offence in any part of the added area prior to the commencement of this Order shall be tried and dealt with as if this Order had not been made:

Provided also that every proceeding which prior to the commencement of this Order has been begun by or before any justice or justices in relation to any matter arising in or concerning any part of the added area may be continued or completed in like manner and with the like incidents and consequences as nearly as may be as if this Order had not been made.

11.—(1) The town clerk and all other officers and servants of the Corporation of the existing Borough who hold office at the commencement of this Order shall continue to be the town clerk and officers and servants of the Corporation of the Borough and shall hold their offices by the same tenure as at that date.

Town clerk
and other
officers con-
tinued.

(2) The auditors who are in office at the commencement of this Order shall continue in office and shall be the Borough auditors until the next ordinary election of Borough auditors.

Borough
auditors.

12. Subject to the provisions of this Order—

Corporation
property
liabilities &c.

(1) All property vested in the Corporation at the commencement of this Order for the benefit of the existing Borough shall by virtue of this Order be held by the Corporation for the benefit of the Borough and the Corporation shall hold enjoy and exercise for the benefit of the Borough all the powers which at the date aforesaid are exerciseable by or vested in the Corporation for the benefit of the existing Borough and all liabilities which on the date aforesaid attach to the Corporation in respect of the existing Borough shall from and after that date attach to them in respect of the Borough:

(2) So much of any sums borrowed by the Corporation as will at the commencement of this Order be owing and charged upon any fund or rate of the existing

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Borough shall by virtue of this Order be charged upon the corresponding fund or rate of the Borough :

- (3) All borrowed moneys to which this Article applies shall together with the interest to accrue due thereon be repaid by the Corporation within the respective periods for which the loans in respect of which the said sums are owing were originally sanctioned or within which the same are otherwise required to be paid or are made repayable.

Local Acts
and Orders.

13. Subject to the provisions of this Order—

- (1) The unrepealed provisions of the Local Acts and of the Confirmation Acts specified in the Schedule to this Order so far as the last-mentioned Acts respectively relate to the Provisional Orders specified in that Schedule and of any other Local Act (including any Local Act passed or to be passed during the present Session of Parliament) or of any other Provisional Order duly confirmed by Parliament and affecting the existing Borough or the Corporation as the same respectively are in force within the existing Borough at the commencement of this Order shall extend and apply to the Borough and any reference therein to the existing Borough and the Corporation shall be deemed to refer to the Borough and the Corporation thereof :
- (2) Any order of the Corporation or their predecessors under any Act or Provisional Order mentioned in subdivision (1) of this Article which may be in force at the commencement of this Order throughout the existing Borough shall extend and apply to the Borough :
- (3) Nothing in this Order shall authorise the Corporation to supply gas within any part of the added area which may be within the limits of supply of the Wakefield Gas Company :
- (4) Notwithstanding the transfer by the Corporation to the Electrical Distribution of Yorkshire Limited of the undertaking authorised by the Ossett Electric Lighting Order 1898 the Corporation shall be the undertakers for the purposes of the said Order within the added area and may if they think fit transfer to that Company the undertaking within that area with the consent of and on such terms and conditions as may be approved by the Electricity Commissioners by deed approved by those Commissioners :

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- (5) Nothing in this Order or in the Ossett Electric Lighting Order 1898 as extended and applied to the Borough by this Order shall prejudicially affect the undertaking or powers of the Yorkshire Electric Power Company in relation to the added area under the Yorkshire Electric Power Acts 1901 1910 1914 and 1918 and in relation to the added area the said Acts shall continue to apply as if within the meaning of those Acts the added area was an Urban District of which the Corporation of the Borough were the Council and formed no part of the Borough and as if no consent of a distributing authority were required in any case to enable the Company to supply energy in the added area.

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14.—(1) The provisions of the Infectious Disease (Prevention) Act 1890 of the Public Health Acts Amendment Act 1890 of the Public Libraries Acts 1892 to 1919 and of the Private Street Works Act 1892 shall be in force in and apply to the Borough as if the same had been adopted for the Borough.

Adoptive
Acts.

(2) Any order under the Infectious Disease (Notification) Act 1889 or under any adoptive Act mentioned in subdivision (1) of this Article which may be in force at the commencement of this Order throughout the existing Borough shall extend and apply to the added area.

15. The provisions of any order under Section 33 or Section 34 of the Act of 1894 in force at the commencement of this Order in the existing Borough shall have effect as if any reference in that order to the Borough as it existed at the date of the order extended and applied to the Borough and as if any reference in that order to the Township of Ossett or to each parish comprised in the Borough at the date of the order as the case may be extended and applied to the Township of Ossett.

Orders under
Section 33 or
34 of the
Act of 1894.

16. Any order made under the Shop Hours Act 1904 or under the Shops Act 1912 or any subsequent Act providing for the closing of shops and in force immediately before the commencement of this Order in the existing Borough shall subject to the provisions of such Acts extend and apply to the Borough.

Orders made
under the
Shop Hours
Act 1904 or
the Shops
Acts 1912
to 1920.

17. Subject to the provisions of this Order—

Byelaws.

- (1) All byelaws and every scale of charges made by the Corporation or their predecessors which at the commencement of this Order are in force in the existing Borough shall except as hereinafter provided apply to the Borough until such byelaws or scale of charges may be altered or repealed :

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(2) The byelaws made by—

(a) The Local Board for the District of Ossett-cum-Gawthorpe on the Eleventh day of February One thousand eight hundred and eighty-nine with respect to slaughterhouses and on the Fifteenth day of July One thousand eight hundred and eighty-nine with respect to new streets and buildings;

(b) The Corporation on the Eighth day of August One thousand eight hundred and ninety-eight with respect to the height of rooms in new buildings;

shall for a period of one year from the date of the Act of Parliament confirming this Order extend and apply to the Borough unless previously repealed or altered but on the expiration of the period aforesaid shall cease to be in force within any part of the Borough:

(3) All byelaws made by the Rural Council or their predecessors and in force immediately before the commencement of this Order in the added area shall on that date cease to be in force in the added area:

(4) All byelaws made by the County Council and in force immediately before the commencement of this Order in the added area shall continue in force in such area except so far as byelaws to the like effect could be made by the Corporation:

(5) In this Article "byelaws" includes any regulation or order and "scale of charges" includes any list of tolls or table of fees or payments.

Education
byelaws.

18. Subject to the provisions of the Education Acts 1870 to 1919 any byelaws made under those Acts and in force in the existing Borough immediately before the commencement of this Order shall on and after that date apply to the Borough until revoked or altered and on and after that date any byelaws then in force in any part of the added area shall cease so to be in force.

Cesser of
jurisdiction
of Rural
Council and
property &c.

19. Subject to the provisions of this Order—

(1) The Rural Council shall cease to exercise any powers or discharge any duties within the added area:

(2) Any property and liabilities which immediately before the commencement of this Order are vested

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in or attach to the Rural Council in relation exclusively to the added area or in relation to the added area conjointly with any other area shall in the first case by virtue of this Order be transferred to and vest in the Corporation as urban authority within the meaning of the Public Health Acts and shall in the second case be a matter for adjustment under Section 62 of the Act of 1888.

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20.—(1) The added area shall cease to form part of the Burial Area and the Burial Acts shall cease to be in force in the added area.

Burial Acts.

(2) The liability of the added area in respect of any moneys borrowed for the purposes of the Burial Acts within the Burial Area shall be a matter for adjustment under Section 62 of the Act of 1888 but nothing herein contained shall prejudice or affect any security which may have been given in respect of such moneys or the rights and powers of the persons entitled under such security to enforce the same as if this Order had not been made.

21. The added area shall cease to form part of the Wakefield and District Smallpox Isolation Hospital District.

Isolation
 Hospital
 District.

22. During a period of fifteen years commencing on the first day of April One thousand nine hundred and twenty-two the total amount in the pound of the general district rates included in the consolidated rates in any financial year and levied in respect of any rateable hereditament in the added area shall not exceed such an amount in the pound as when added to the total amount in the pound of the remainder of the consolidated rates for the year (with the exception of water rate rents or charges) will cause the total amount in the pound of the consolidated rates to exceed six shillings and sixpence.

Differential
 general dis-
 trict rates.

PART IV.

SUPPLEMENTARY PROVISIONS.

23.—(1) The Rural Council shall prior to the commencement of this Order make provision for raising sufficient funds to defray all current debts and liabilities and the current expenditure to be incurred up to the Thirty-first day of March One thousand nine hundred and twenty-two in respect of the added area.

Liquidation
 of current
 debts and
 liabilities.

(2) In default of such provision being made the Corporation may issue a precept to the Overseers of the Poor of the Township of Ossett requiring the Overseers to make and levy

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Ossett Order. the pound as will be sufficient to defray the current debts
liabilities and expenditure aforesaid as if such area were the
Borough and the provisions of the Public Health Acts and of
the Ossett Corporation Act 1914 relating to general district rates
shall apply to any general district rate authorised by this Article.

(3) Save as expressly provided by this Order neither the
Corporation nor the Overseers of the Poor of the Township of
Ossett shall levy any rate in the added area after the commence-
ment of this Order and before the First day of April One
thousand nine hundred and twenty-two.

*Adaptation
of provisions
as to adjust-
ment.*

24. For the purposes of the application of Section 62
of the Act of 1888 to any adjustment which may become neces-
sary in consequence of this Order that section shall have
effect—

- (a) As if in subsections (5) (6) and (7) thereof the
expression "Council" included any authority affected
by this Order or by anything done in pursuance of
this Order; and
- (b) As if in the case of any such authority not otherwise
empowered to borrow under any Act or on any
security or in any manner mentioned in the said sub-
section (6) that subsection empowered the authority to
borrow under any Act relating to and conferring on
the authority a power to borrow on the security of all
or any of the funds rates and revenues of the authority
and in the manner provided by the said Act but with-
out the consent of any other authority and subject
to the requirement that all money so borrowed shall
be repaid within such period as the Minister may
sanction :

Provided that where the authority affected by this Order
or anything done in pursuance of this Order are a Board of
Guardians Section 62 of the Act of 1888 shall apply with
respect to any necessary adjustment with the modifications
specified in the First Schedule to the Poor Law (Dissolution of
School Districts and Adjustments) Act 1903.

*Parochial
adjustments.*

25. For the purposes of the application of Section 62 of
the Act of 1888 to any adjustment which may become necessary
in consequence of this Order so far as it relates to the alteration
of the area of the existing Townships of Ossett and Lupset
that section shall have effect—

- (a) As if the Overseers of the Townships of Ossett and
Lupset were within the meaning of the said section

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as applied by this Order authorities affected by this Order;

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(b) As if the poor rate or any other rate leviable in pursuance of the said section as applied by this Order were substituted for any fund mentioned in the section; and

(c) As if for subsections (6) and (7) of the said section there were substituted the subsections hereunto appended that is to say:—

“ (6) If it is necessary for the purpose of giving effect to any agreement or award for an adjustment that a separate rate shall be levied in part of a parish only the agreement or award may authorise the making of such a separate rate as if it were a poor rate and as if the part of the parish on which it is to be levied were a whole parish ” :

“ (7) Any capital sum paid for the purposes of any adjustment or in pursuance of any order or award of an arbitrator shall be applied by such person in such manner and for such purpose as the Minister of Health may authorise or direct.”

26.—(1) Every officer or servant who by virtue of this Order or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary shall be entitled to have compensation paid to him by the Corporation for that pecuniary loss.

Compensation to existing officers.

(2) In determining the compensation payable to any person who becomes entitled to compensation in pursuance of this Article regard shall be had to the conditions and circumstances mentioned in subsection (1) of Section 120 of the Act of 1888 and the compensation shall not exceed the limit therein mentioned.

(3) Any compensation payable to any officer or servant whose office or employment relates wholly or partly to sanitary purposes as defined by the Public Health Act 1875 shall be paid out of the district fund and general district rate of the Borough and in every other case out of the borough fund and borough rate of the Borough and the provisions of subsections (2) to (7) of Section 120 of the Act of 1888 shall apply with the necessary modifications.

(4) The non-acceptance of any office shall not be a bar to the right of any officer to compensation.

(5) No person shall be entitled to claim or receive both compensation for any direct pecuniary loss by abolition of

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Ossett Order. tion or retiring allowance in respect of the same period of
service and the same pecuniary loss.

Valuation
list.

27.—(1) Until a new valuation list is in force the portion of the valuation list of the existing Township of Lupset which relates to hereditaments in the added area shall be deemed to form part of the valuation list of the Township of Ossett.

(2) The remaining portion of the valuation list of the existing Township of Lupset shall be the valuation list of the Township of Lupset.

County rate
basis.

28.—(1) Subject to any future revision the basis or standard of the county rate of the County shall be altered as follows:—

(a) Such sums as will represent the net annual values of the agricultural land and of other hereditaments in the added area shall be deducted from the amounts appearing in the basis or standard as the net annual values of the agricultural land and of other hereditaments in the existing Township of Lupset and shall be added to the amounts therein appearing as the net annual values of the agricultural land and of other hereditaments in the existing Township of Ossett; and

(b) the amounts appearing in the basis or standard as the net annual values and assessable values of the property in the existing Townships of Lupset and Ossett shall be reduced and increased respectively to correspond with the alterations so made in the net annual values of the agricultural land and of other hereditaments in such Townships.

(2) For the purposes of this Article the net annual value of the agricultural land in the added area shall be the amount which bears the same relation to the net annual value of agricultural land in the existing Township of Lupset as the total rateable value of the agricultural land in the added area bears to the total rateable value of the agricultural land in the existing Township.

(3) For the purpose of ascertaining the net annual value of hereditaments not being agricultural land in the added area subdivision (2) of this Article shall apply with the substitution for “agricultural land” of “hereditaments other than agricultural land.”

(4) In this Article “net annual value” and “assessable value” mean the net annual value and assessable value according

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to the basis or standard of the county rate of the County and "total rateable value" means the total rateable value according to the valuation list of the existing Township of Lupset last in force before the basis or standard is altered in pursuance of this Article.

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(5) For the purpose of the preparation of any order for county contributions to be issued by the County Council after the commencement of this Order this Article shall operate from the date of the Act of Parliament confirming this Order.

29. For any purpose connected with the settlement and removal of the poor the Township of Ossett shall be deemed to be and always to have been identical with the existing Township of Ossett and the Township of Lupset shall be deemed to be and always to have been identical with the existing Township of Lupset.

Settlement
and irremov-
ability.

30. The Township of Ossett shall continue to be represented on the Board of Guardians of the Dewsbury Union by two Guardians of the Poor and the persons who at the commencement of this Order are in office as Guardians for the existing Township of Ossett shall be deemed to have been elected to that office for the Township of Ossett and shall continue in office until the date upon which they would have retired if this Order had not been made.

Guardians of
the Poor.

31. Any balance standing in the books of the Wakefield Guardians or of the Rural Council at the commencement of this Order to the credit of the existing Township of Lupset and any balance owing by that existing Township at that date shall be a matter for adjustment under Section 62 of the Act of 1888.

Balances in
Guardians'
and Rural
Council's
accounts.

32. — (1) All arrears of rates made by the Overseers of the Poor of the existing Township of Lupset and due or owing at the commencement of this Order in respect of any rateable hereditament in the added area shall be collected and recovered by the Overseers of the Poor of the Township of Lupset.

Arrears of
rates &c.

(2) All arrears of rates made by the Overseers of the Poor of the existing Township of Lupset for the purposes of the Public Health Acts or for highway expenses and collected in respect of any hereditament in the added area shall be applied towards the discharge of any precept of the Rural Council which at the commencement of this Order shall not have been satisfied and the balance (if any) shall be paid to the Corporation.

(3) Any balance in the hands of the Overseers of the existing Township of Lupset at the commencement of this Order

Adjustment
of balances.

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A.D. 1921. and any sum collected after that date by the Overseers of the
— Township of Lupset in pursuance of subdivision (1) of this
Ossett Order. Article shall be a matter for adjustment under Section 62 of
the Act of 1888.

Provisions as
to register of
electors.

33.—(1) In the preparation of the autumn register for the year one thousand nine hundred and twenty-one in pursuance of the Act of 1918 so far as it relates to any area affected by this Order it shall be competent to the Registration Officer of the Parliamentary County of the West Riding of Yorkshire to frame the register in separate parts for each area which will constitute a registration unit from and after the commencement of this Order instead of in separate parts for each area constituting a registration unit before the commencement of this Order.

(2) If any register of local government electors for any area affected by this Order is not so framed as to show the persons entitled to vote at an election to be held for any parish or ward or other electoral division the Town Clerk of the Borough in the case of an election for a parish or ward or other electoral division within the Borough and the Registration Officer of the Parliamentary County in the case of an election for a parish or ward or other electoral division outside the Borough shall make such alteration or re-arrangement of the register as may be necessary for the purposes of such election.

(3) It shall be the duty of the Overseers to render such assistance as may be required by the Town Clerk of the Borough or Registration Officer of the Parliamentary County for the purpose of such alteration or re-arrangement.

(4) Where in the opinion of the Secretary of State the circumstances so require he may make such order as appears to him to be necessary to give effect to the provisions of this Order and may vary so far as is requisite the provisions in force with regard to the lists and registers of electors.

Actions &c.
not to abate.

34.—(1) Any action or proceeding or any cause of action or proceeding which at the commencement of this Order is pending or existing by or against the Rural Council in relation exclusively to the added area shall not be in anywise prejudicially affected by reason of the making of this Order but may be continued prosecuted and enforced by or against the Corporation.

Saving for
contracts &c.

(2) All contracts deeds bonds agreements and other instruments (subsisting at the commencement of this Order) entered into or made by the Rural Council or their predecessors

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. xcvi.]
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in relation exclusively to the added area shall be of as full force and effect against or in favour of the Corporation and may be continued and enforced as fully and effectually as if instead of the Rural Council or their predecessors the Corporation had been a party thereto.

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—
Ossett Order.

35. Notwithstanding the alteration of areas effected by this Order all contribution orders or precepts issued or made before the commencement of this Order shall be as valid as if this Order had not been made.

Saving for contribution orders and precepts.

36. Nothing in this Order shall be construed as restricting the powers of the Minister under the Acts relating to the Relief of the Poor or the powers of the Minister or of the County Council under the Act of 1888 or the Act of 1894.

Saving for powers of the Minister or County Council.

37. Nothing in this Order shall affect the powers of the County Council under Section 31 of the Act of 1918 or any order or scheme made by the County Council for the division of the Parliamentary County of the West Riding of Yorkshire into polling districts and the appointment of polling places for parliamentary elections.

Parliamentary polling districts.

38. Nothing in this Order shall affect the ecclesiastical divisions of any parish or shall prejudice vary or affect any right interest or jurisdiction in or over any charitable endowment.

Ecclesiastical divisions and charities.

39. This Order may be cited as the Ossett (Extension) Order 1921.

Short title.

The SCHEDULE.

PART I.—LOCAL ACTS.

Session and Chapter.	Short Title.
38 & 39 Vict. c. lxix.	- The Ossett-cum-Gawthorpe Local Board Act 1875.
63 & 64 Vict. c. lxxv.	- The Ossett Corporation Gas Act 1900.
4 & 5 Geo. 5. c. clix.	- The Ossett Corporation Act 1914.

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PART II.—CONFIRMATION ACTS.

Ossett Order.

Session and Chapter.	Short Title.	Order thereby confirmed.
43 & 44 Vict. c. lxxxvi.	Local Government Board's Provisional Orders Confirmation (Aberavon &c.) Act 1880.	The Ossett-cum-Gawthorpe Order 1880.
61 & 62 Vict. c. xxxviii.	The Electric Lighting Orders Confirmation (No. 2) Act 1898.	The Ossett Electric Lighting Order 1898.
61 & 62 Vict. c. lxxxii.	The Local Government Board's Provisional Orders Confirmation (No. 9) Act 1898.	The Ossett Order 1898.
63 & 64 Vict. c. clxxxi.	The Local Government Board's Provisional Orders Confirmation (No. 12) Act 1900.	The Ossett Order 1900.
4 Edw. 7. c. clxxxi.	The Tramways Orders Confirmation (No. 2) Act 1904.	The Ossett Corporation Tramways Order 1904.
5 Edw. 7. c. lxxi.	The Local Government Board's Provisional Orders Confirmation (No. 4) Act 1905.	The Ossett Order 1905.
6 Edw. 7. c. cxxxiv.	The Tramways Orders Confirmation Act 1906.	The Ossett Corporation Tramways Order 1906.

Given under the Official Seal of the Minister of Health
this Second day of May One thousand nine hundred
and twenty-one.

(L.S.)

F. J. WILLIS
Assistant Secretary Ministry of Health.

CITY OF WAKEFIELD.

*Wakefield
Order.*

*Provisional Order made in pursuance of the Local
Government Act 1888 for the extension of
a County Borough.*

51 & 52 Vict.
c. 41.

WHEREAS by virtue of Section 54 of the Local Government Act 1888 the Minister of Health is empowered to make a Provisional Order for altering the boundary of any Borough ;

And whereas the existing City of Wakefield is a County Borough within the meaning of the Local Government Act 1888 and is for the purposes of that Act situate in the County of the West Riding of Yorkshire and the inhabitants are a body corporate by the name of the Mayor Aldermen and

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Citizens of the City of Wakefield and act by the Council of the said City which now consists of the Mayor (who is also an Alderman) ten other Aldermen and thirty-three Councillors and the said City is for the purposes of the election of Councillors divided into eleven wards of which two are known as the North Westgate Ward and the South Westgate Ward ;

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Wakefield
Order.

And whereas the said City comprises the Parishes of Wakefield and Sandal Magna (which Parishes are included in the Wakefield Poor Law Union) and is an Urban Sanitary District of which the Mayor Aldermen and Citizens acting by the Council are the Urban Sanitary Authority ;

And whereas the said City has a separate commission of the peace and police force ;

And whereas the Council of the said City are the Local Education Authority for the purposes of the Education Acts 1870 to 1919 ;

And whereas—

- (a) The unrepealed provisions of the Local Acts specified in Part I. of the Schedule to this Order and of the Confirmation Acts specified in Part II. (A) and (B) of the said Schedule so far as the last-mentioned Acts relate to the Orders specified in that Schedule ;
- (b) The Infectious Disease (Prevention) Act 1890 (except Section 4) ;
- (c) The Public Health Acts Amendment Act 1890 ;
- (d) The Baths and Washhouses Acts 1846 to 1899 ;
- (e) The Public Libraries Acts 1892 to 1919 ; and
- (f) The Museums and Gymnasiums Act 1891 (so far as it relates to museums) ;

are in force in the said City ;

And whereas the Council of the said City are the authority for the execution of the Burial Acts 1852 to 1906 within the said City ;

And whereas the Township of Lupset in the West Riding of Yorkshire immediately adjoins the said City and is a contributory place in the Rural District of Wakefield and is subject to the jurisdiction of the Rural District Council of Wakefield ;

And whereas the said Township forms part of the Wakefield Poor Law Union and of the Alverthorpe Electoral Division for the election of County Councillors ;

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Wakefield
Order.

And whereas by the Ossett (Extension) Order 1921 it is provided that on the day on which this Order comes into operation the boundary of the Borough of Ossett shall be altered so as to include in addition to the existing Borough that part of the existing Township of Lupset which is not by this Order added to the City of Wakefield:

Now therefore the Minister of Health in pursuance of the powers given to him by Sections 54 and 59 of the Local Government Act 1888 and of all other powers enabling him in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the following provisions shall take effect:—

PART I.

INTERPRETATION AND COMMENCEMENT.

Application
of the Inter-
pretation
Act 1889.
52 & 53 Vict.
c. 63.

1. The Interpretation Act 1889 applies to the interpretation of this Order as it applies to the interpretation of an Act of Parliament and where by this Order any enactment or any provision in an Order is repealed or is to cease to have effect in an area Section 38 of the Act of 1889 shall apply as if this Order were an Act of Parliament.

Definitions.

2. In this Order unless the context otherwise requires—

“The Minister” means the Minister of Health;

“The commencement of this Order” means the Ninth day of November One thousand nine hundred and twenty-one;

“The existing City” means the City of Wakefield as it exists immediately prior to the commencement of this Order;

“The City” means the existing City as extended by this Order;

“The Corporation” means as the context requires the Mayor Aldermen and Citizens of the existing City or of the City acting by the Council;

“The County” and “the County Council” mean respectively the Administrative County of the West Riding of Yorkshire and the County Council of that County;

“The maps” means the duplicate maps marked “Map of the City of Wakefield as extended by the Wake-

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. xcvi.]
*Provisional Orders Confirmation (Ossett and
Wakefield Extension) Act, 1921.*

field (Extension) Order 1921" and sealed with the official seal of the Minister ;

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Order.*

"The Rural District" and "the Rural Council" mean respectively the Rural District of Wakefield and the Rural District Council of that District ;

"The Wakefield Union" and "the Wakefield Guardians" mean respectively the Wakefield Poor Law Union and the Guardians of that Union ;

"The added area" means the portion of the existing Township of Lupset which is coloured in part yellow and in part blue on the maps ;

"The Burial Area" means the area comprising the existing parishes or townships of Kirkhamgate and Lupset and a part of the Stanley Urban District within which a Joint Burial Committee exercise the powers and duties of a Burial Authority under the Burial Acts ;

"The Township of Lupset" means the Township of Lupset as diminished in area by the Ossett (Extension) Order 1921 ;

"Existing" when used in relation to any district parish township or poor law union means the area as it exists immediately before the commencement of this Order and of the Ossett (Extension) Order 1921 ;

"The Act of 1888" and "the Act of 1894" mean respectively the Local Government Act 1888 and the Local Government Act 1894 ;

"The Municipal Corporations Acts" means the Municipal Corporations Act 1882 and the Acts amending and extending the same and "the Public Health Acts" means the Public Health Act 1875 and the Acts amending and extending the same ;

"The Burial Acts" means the Burial Acts 1852 to 1906 ;

"The Act of 1907" and "the Act of 1918" mean respectively the Public Health Acts Amendment Act 1907 and the Representation of the People Act 1918.

3. This Order shall except so far as is otherwise herein expressly provided and except so far as there may be anything in the subject-matter or context inconsistent therewith come into operation on the Ninth day of November One thousand nine hundred and twenty-one :

Commence-
ment of
Order.

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A.D. 1921. <i>Wakefield Order.</i> Date of operation of Order for elections. Date of operation for purposes of certain grants and Local Taxation Licences.	Provided that for the purposes of all proceedings preliminary or relating to any municipal election to be held on the ordinary day of election in the year One thousand nine hundred and twenty-one this Order shall operate from the date of the Act of Parliament confirming this Order : Provided also that for any purpose connected with the distribution and application of the moneys payable out of the Local Taxation Account or by the Postmaster-General in pursuance of the Act of 1888 of the Local Taxation (Customs and Excise) Act 1890 and of the Roads Act 1920 (as amended by any subsequent Act and as affected by any Order in Council) the existing City shall be deemed not to have been altered and the added area shall be deemed to continue part of the County until the First day of April One thousand nine hundred and twenty-two.
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PART II.

EXTENSION OF THE CITY.

Extension of City.	4.—(1) The boundary of the existing City the area whereof is coloured pink on the maps shall be altered so as to include in addition to that area so much of the Rural District as comprises the added area. (2) The boundary of the City shall be that shown by the red line on the maps and the whole of the area within that boundary shall for the purposes of the Municipal Corporations Acts and for all other purposes be the City and shall be the County Borough for the purposes of the Act of 1888.
Deposit of maps.	5.—(1) One of the maps shall be deposited in the office of the Minister and the other shall be deposited by the town clerk of the existing City at his office within fourteen days after the date of this Order. (2) Copies of the map deposited with the town clerk certified by him to be true shall be sent within one month after the date of the Act of Parliament confirming this Order to the Clerk of the County Council to the Clerk to the Rural Council to the Clerk to the Wakefield Guardians to the Board of Inland Revenue to the Commissioners of Customs and Excise to the Registrar-General to the Postmaster-General to the Board of Trade to the Minister of Transport and to the Minister of Agriculture and Fisheries.
Copies of map to be evidence.	(3) Copies of or extracts from the map deposited with the town clerk certified by him to be true shall be received in all courts of justice and elsewhere as <i>primâ facie</i> evidence of the

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contents of the map so far as it relates to the boundaries of the City and the map shall at all reasonable times be open to inspection by any person liable to any rate leviable within the City and any such person shall be entitled to a copy of or extract from the map certified by the town clerk to be true on payment of a reasonable fee to be determined by the Corporation.

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*Wakefield
Order.*

(4) All fees so received shall be carried to the credit of the city fund.

6. Subject to the provisions of the Municipal Corporations Acts with respect to the alteration of wards the following provisions shall have effect:—

Division into
wards.

(1) For the purposes of the election of Councillors the existing North Westgate Ward of the City shall be extended so as to include so much of the added area as is coloured yellow on the maps and the existing South Westgate Ward of the City shall be extended so as to include so much of the added area as is coloured blue on the maps:

(2) Such of the Councillors representing the existing North Westgate and South Westgate Wards respectively as would have retired from office on the ordinary day of election in the years One thousand nine hundred and twenty-two and One thousand nine hundred and twenty-three shall in each case be deemed from and after the commencement of this Order to represent those wards as altered by this Order and shall remain in office until the day on which they would have retired if this Order had not been made.

7. For the purposes of the application to the City of the provisions of the County and Borough Councils (Qualification) Act 1914 the added area shall be deemed to have always formed part of the City.

County and
Borough Coun-
cils (Qualifica-
tion) Act 1914.
4 & 5 Geo. 5.
c 21.

8.—(1) The Alverthorpe Electoral Division of the County as diminished by this Order and by the Ossett (Extension) Order 1921 shall continue to be an electoral division of the County.

County
Electoral
Division.

(2) The person who at the commencement of this Order holds office as County Councillor for the Alverthorpe Electoral Division shall continue to represent the said division as so diminished until the day on which he would have retired if this Order had not been made.

9. The powers and duties of the justices of the peace appointed for the existing City of the clerk to those justices and of the police constables and other peace officers of the existing City shall extend to and apply throughout the City:

Jurisdiction
of Justices
and police.

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Wakefield Extension) Act, 1921.*

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Order.*

Provided that every person committing an offence in the added area prior to the commencement of this Order shall be tried and dealt with as if this Order had not been made :

Provided also that every proceeding which prior to the commencement of this Order has been begun by or before any justice or justices in relation to any matter arising in or concerning the added area may be continued or completed in like manner and with the like incidents and consequences as nearly as may be as if this Order had not been made.

Town clerk
and other
officers con-
tinued.

10.—(1) The town clerk and all other officers and servants of the Corporation of the existing City who hold office at the commencement of this Order shall continue to be the town clerk and officers and servants of the Corporation of the City and shall hold their offices by the same tenure as at that date.

City auditors.

(2) The auditors who are in office at the commencement of this Order shall continue in office and shall be the City auditors until the next ordinary day of election of City auditors.

Corporation
property
liabilities &c.

11. Subject to the provisions of this Order—

(1) All property vested in the Corporation at the commencement of this Order for the benefit of the existing City shall by virtue of this Order be held by the Corporation for the benefit of the City and the Corporation shall hold enjoy and exercise for the benefit of the City all the powers which at the date aforesaid are exerciseable by or vested in the Corporation for the benefit of the existing City and all liabilities which on the date aforesaid attach to the Corporation in respect of the existing City shall from and after that date attach to them in respect of the City :

(2) So much of any sums borrowed by the Corporation as will at the commencement of this Order be owing and charged upon any fund or rate of the existing City shall by virtue of this Order be charged upon the corresponding fund or rate of the City and shall together with the interest to accrue due thereon be repaid by the Corporation within the respective periods for which the loans in respect of which the said sums are owing were originally sanctioned or within which the same are otherwise required to be paid or are made repayable.

Local Acts
and Orders.

12.—(1) Subject to the provisions of this Order—

(a) The unrepealed provisions of the Local Acts and of the Confirmation Acts specified in Part I. and

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. xcvi.]
*Provisional Orders Confirmation (Ossett and
Wakefield Extension) Act, 1921.*

Part II. (A) of the Schedule to this Order so far as the last-mentioned Acts respectively relate to the Provisional Orders specified in the said Part II. (A) and of any other Local Act (including any Local Act passed or to be passed during the present Session of Parliament) or of any other Provisional Order duly confirmed by Parliament and affecting the existing City or the Corporation (other than the Wakefield Corporation Electric Lighting Order 1894) as the same respectively are in force within the existing City at the commencement of this Order shall extend and apply to the City and any reference therein to the existing City and the Corporation shall be deemed to refer to the City and the Corporation thereof :

A.D. 1921.

*Wakefield
Order.*

- (b) Any order of the Corporation under any Act or Provisional Order mentioned in subdivision (1) of this Article which may be in force at the commencement of this Order throughout the existing City shall extend and apply to the City.

(2) Nothing in this Order or in any local Act or Order as extended and applied to the City by this Order shall prejudicially affect the undertaking or powers of the Yorkshire Electric Power Company in relation to the added area under the Yorkshire Electric Power Acts 1901 1910 1914 and 1918 and in relation to the added area the said Acts shall continue to apply as if within the meaning of those Acts the added area were an Urban District of which the Corporation of the City were the Council and formed no part of the City and as if no consent of a distributing authority were required in any case to enable the Company to supply energy in the added area.

13.—(1) In relation to the water undertaking of the Corporation Articles XVI. and XVIII. of the Wakefield Order 1900 and Article XX. of the Wakefield (Extension) Order 1909 shall be altered and have effect so that the added area within the meaning of this Order shall form part of the area for which that undertaking is held in trust by the Corporation and in respect of which any balance of water revenue is applicable in relief of the rates levied in the said area.

Water debts
of the Cor-
poration.

(2) So much of any sums borrowed by the Corporation for the purposes of their water undertaking as remains outstanding at the commencement of this Order shall so far as those sums respectively are now charged upon and payable out of the rates leviable under subdivision (3) of Article XX. of the Wakefield (Extension) Order 1909 be charged upon and payable out of the rates to be levied in pursuance of subdivision (3) of this Article.

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Provisional Orders Confirmation (Ossett and
Wakefield Extension) Act, 1921.

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Wakefield
Order.

(3) Subject to the provisions of this Order the Corporation shall from time to time make and levy such a rate in the nature of a general district rate upon the area which comprises the City of Wakefield as it existed immediately prior to the Ninth day of November One thousand eight hundred and ninety-five the added area within the meaning of the Wakefield (Extension) Order 1909 and the added area within the meaning of this Order as will be sufficient to raise the sums required to be raised by rates for the repayment of the several sums to which subdivision (2) of this Article applies and for the repayment of any sums borrowed after the commencement of this Order for the purposes of their water undertaking or for the payment of interest on those sums and for making good any deficiency in the water revenue.

(4) Subdivisions (1) and (2) of Article XVIII. of the Wakefield Order 1900 and subdivisions (2) and (3) of Article XX. of the Wakefield (Extension) Order 1909 are hereby repealed.

Adoptive
Acts.

14.—(1) Such of the provisions of the Baths and Wash-houses Acts 1846 to 1899 the Infectious Disease (Prevention) Act 1890 the Public Health Acts Amendment Act 1890 the Public Libraries Acts 1892 to 1919 and the Museums and Gymnasiums Act 1891 as are in force in the existing City shall be in force and apply to the City as if the same had been adopted for the City.

(2) Any order under the Infectious Disease (Notification) Act 1889 or under any adoptive Act mentioned in subdivision (1) of this Article which may be in force at the commencement of this Order throughout the existing City shall extend and apply to the added area.

Powers under
Act of 1907.

15. Subject to any order which the Minister or the Secretary of State may make after the commencement of this Order—

(1) The provisions of any order made before the commencement of this Order and declaring to be in force in the City of Wakefield any Parts or Sections of the Act of 1907 shall have effect as if any reference in that order to the City as it existed at the date of such order extended and applied to the City and as if the said Parts or Sections were accordingly declared to be in force in the City :

(2) Any other order under the Act of 1907 which is in force at the commencement of this Order throughout the existing City shall extend and apply to the added area.

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*Provisional Orders Confirmation (Ossett and
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16.—(1) The powers duties and liabilities of a parish council transferred to or conferred upon the Corporation by the Order of the Local Government Board under Sections 33 and 34 of the Act of 1894 dated the Thirty-first day of August One thousand eight hundred and ninety-nine in relation to the appointment of Overseers and Assistant Overseers the revocation of the appointment of Assistant Overseers and the powers of the vestry under Sections 3 and 4 of the Poor Rate Assessment and Collection Act 1869 shall be deemed to have been transferred to or conferred on the Corporation in respect of the City and of the Parish of Wakefield and of the Townships of Lupset and Sandal Magna and the said Order shall be amended and have effect accordingly.

A.D. 1921.

—
*Wakefield
Order.*

Orders under
Sections 33
and 34 of
Act of 1894.

(2) The powers duties and liabilities of a parish council under Section 14 of the Act of 1894 conferred upon the Corporation by the Order of the Local Government Board dated the Twenty-eighth day of September One thousand nine hundred and sixteen shall not be deemed to have been conferred on the Corporation in respect of the Township of Lupset but shall extend only to the Parish of Wakefield and the Township of Sandal Magna.

(3) Any Order under Section 33 or Section 34 of the Act of 1894 other than the Orders already mentioned in this Article shall cease to have effect in the City.

(4) An Order may be made by the Minister under Section 33 of the Act of 1894 with respect to any charity held wholly or partly for the benefit of the inhabitants of the Township of Lupset.

(5) Subsection (2) of Section 8 of the Wakefield Corporation Act 1899 and Article XXII. of the Wakefield (Extension) Order 1909 are hereby repealed.

17. Any order made under the Shop Hours Act 1904 or under the Shops Act 1912 or any subsequent Act providing for the closing of shops and in force immediately before the commencement of this Order in any area affected by this Order shall subject to the provisions of such Acts remain in force and apply to the area to which it applied before the commencement of this Order.

Orders under
the Shop
Hours Act
1904 or the
Shops Acts
1912 to 1920.

18. Subject to the provisions of this Order—

Byelaws &c.

(1) All byelaws and every scale of charges made by the Corporation which at the commencement of this Order are in force throughout the existing City shall except as hereinafter provided apply to the City until such byelaws or scale of charges may be altered or repealed:

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*Provisional Orders Confirmation (Ossett and
Wakefield Extension) Act, 1921.*

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*Wakefield
Order.*

- (2) The byelaws made by the Corporation on the Fourteenth day of April One thousand eight hundred and ninety-six with respect to new streets and buildings and slaughter-houses shall for a period of one year from the date of the Act of Parliament confirming this Order extend and apply to the City unless previously repealed or altered but on the expiration of the period aforesaid shall cease to be in force within any part of the City :
- (3) Any byelaws made by the County Council or the Rural Council (or their predecessors) and in force immediately before the commencement of this Order in the added area shall cease to be in force in that area except as regards any work which has been begun before that date or as regards any work which has not been so begun but for which plans have been approved before that date by the Rural Council or have been sent to their surveyor or clerk one month at least before that date and have not been disapproved by the Rural Council :
- (4) As regards any work within the exception in subdivision (3) of this Article the byelaws in force immediately before the commencement of this Order shall continue to apply until the completion of the work in like manner and with the like effect as if those byelaws had been made by the Corporation and as if the Corporation and the City were referred to therein instead of the Rural Council (or their predecessors) and the Rural District :
- (5) Any proceedings which if this Order had not been made might have been taken by the County Council or the Rural Council for any offence committed before the commencement of this Order against any byelaws which by virtue of this Article cease to be in force may be taken by the Corporation as if those byelaws had remained in force and the Corporation had been substituted therein for that Council (or their predecessors) :
- (6) In this Article "byelaws" includes any regulation or order and "scale of charges" includes any list of tolls or table of fees or payments.

County
police.

19.—(1) At the commencement of this Order such number (if any) of the members of the police force of the County as shall be determined by agreement to be made as soon as practicable after the date of the Act of Parliament confirming

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. xcvi.]
Provisional Orders Confirmation (Ossett and
Wakefield Extension) Act, 1921.

this Order between the Standing Joint Committee of the County and the Watch Committee of the existing City or in default of any such agreement as shall be determined by a Secretary of State shall be transferred to and become part of the police force of the City :

A.D. 1921.

Wakefield
Order.

Provided that no member of the police force of the County shall be transferred to or become a member of the police force of the City under this subdivision unless such member consents to be so transferred.

(2) Every member of the county police force so transferred shall hold office in the police force of the City upon the same tenure and upon the same terms and conditions as he would have held office in the county police force if this Order had not been made and while he performs the same or similar duties his remuneration emoluments and allowances and the pension (if any) to which he may be entitled shall not be less than they would have been if this Order had not been made.

(3) The provisions of Section 15 (2) of the Police Act 1890 as amended by any subsequent Act shall extend and apply to and in relation to any member of the police force transferred under the powers of this Article as if that member had removed with the written sanction of the Chief Constable of the County notwithstanding that at the date of the transfer such member may not have served in such police force for the minimum period prescribed by Section 4 (4) of the Police Act 1890 as amended by the Police (Superannuation) Act 1908.

20.—(1) In any case where the extension of the existing City by this Order affects the distribution between the County and the City or between the County and the City on the one hand and any other County Borough on the other hand of the moneys payable out of the Local Taxation Account or by the Postmaster-General in pursuance of the Act of 1888 or of the Local Taxation (Customs and Excise) Act 1890 and of the Roads Act 1920 (as amended by any subsequent Act and as affected by any Order in Council) or any financial relations or questions between the areas aforesaid or any adjustment which has been made in regard to the said distribution or financial relations or questions equitable adjustments may be made between the areas interested.

Adjustment
of financial
relations
between
County
and County
Boroughs.

(2) Any such adjustment as is authorised by subdivision (1) of this Article may be made by agreement between the Councils of the City the County and the County Borough affected and if such adjustment shall not have been made before the Thirtieth day of September One thousand nine hundred and twenty-two then on the application of any of the Councils interested the Minister may if he thinks fit make or appoint an arbitrator to make the adjustment.

[Ch. xcvi.] *Ministry of Health* [11 & 12 GEO. 5.]
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Wakefield Extension) Act, 1921.*

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Order.*

(3) In any case in which an agreement for equitable adjustments as aforesaid shall not have been made the provisions of the Act of 1888 relating to adjustments between Administrative Counties and County Boroughs shall apply with the necessary modifications and the Minister or an arbitrator appointed by him as the case may be shall be substituted in those provisions for the Commissioners appointed under the Act of 1888 and notwithstanding anything in the provisions of this Order or of the Act of 1888 any such adjustment and the determination of any matter incidental or in relation thereto or consequent thereon shall when made by the Minister be deemed to be made by him otherwise than as an arbitrator and any arbitrator appointed by him shall be deemed to be an arbitrator within the meaning of Section 62 of the Act of 1888 and the provisions of the Act of 1888 shall apply accordingly :

Provided—

- (a) that in lieu of subsection (6) of Section 61 of the Act of 1888 subsections (1) and (5) of Section 87 of the Act of 1888 shall apply to any inquiries which may be directed by the Minister under this Article and to the costs of those inquiries ; and
- (b) that subsection (6) of Section 32 of the Act of 1888 shall apply to any agreement or award made under this Article.

Adjustment
for purposes
of Licensing
(Consolidation)
Act
1910.

21.—(1) An equitable adjustment shall be made between the County and the City respecting the interest of the added area in any compensation fund constituted under Section 21 of the Licensing (Consolidation) Act 1910 or under any enactment repealed by that Act.

(2) Such adjustment shall be made by agreement between the Compensation Authority (as defined by the Licensing (Consolidation) Act 1910) for the County and for the City within twelve months from the commencement of this Order or such extended period as may be allowed by the Secretary of State or in default of agreement by an arbitrator appointed by the Secretary of State.

(3) For the purpose of such adjustment an arbitrator appointed by the Secretary of State shall be deemed to be an arbitrator within the meaning of Section 62 of the Act of 1888 and the provisions of that Act shall apply accordingly.

Insurance
Committees.

22.—(1) The Minister may at any time after the passing of the Act of Parliament confirming this Order by order make such provisions as appear to him to be necessary for transferring to the Insurance Committee for the City such of the property

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rights and liabilities of the Insurance Committee for the County as relate to persons resident in the added area, A.D. 1921.

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Order.*

(2) An order made under this Article may authorise the Insurance Committee for the County to continue to act as Insurance Committee for the added area until such date not being later than the Thirty-first day of December One thousand nine hundred and twenty-one as may be specified in the order and may for that purpose postpone the operation of this order so far as relates to the rights and duties of the respective Insurance Committees for the County and City until the date so specified and may provide for such financial adjustments and may contain such other consequential and supplementary provisions as may appear to the Minister necessary or expedient.

(3) An order under this Article shall have effect as if enacted in the National Insurance Act 1911 and may be revoked revised or amended by an order made in like manner as the original order.

(4) The persons who immediately before the commencement of this Order are members of the respective Insurance Committees for the County and the existing City shall be deemed to have been appointed or elected as and shall be the members of the respective Insurance Committees for the County as altered by this order and the City.

23. Subject to the provisions of the Education Acts 1870 to 1919 any byelaws made under those Acts and in force in the existing City immediately before the commencement of this Order shall on and after that date apply to the City until revoked or altered and on and after that date any byelaws then in force in the added area shall cease so to be in force. Education byelaws.

24. Subject to the provisions of this Order—

- (1) The Rural Council shall cease to exercise any powers or discharge any duties within the added area ;
- (2) Any property and liabilities which immediately before the commencement of this Order are vested in or attach to the Rural Council in relation exclusively to any part of the added area or in relation to any part of the added area conjointly with any other area shall in the first case by virtue of this Order be transferred to and vest in the Corporation as Urban Sanitary Authority and shall in the second case be a matter for adjustment under Section 62 of the Act of 1888.

Cesser of
jurisdiction
of Rural
Council and
property &c.

25.—(1) The Corporation shall be the Burial Board for the City and shall have within the City to the exclusion of any Burial Acts.

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A.D. 1921. other burial authority all the powers duties and liabilities of a
Burial Board under the Burial Acts :

*Wakefield
Order.*

Provided that no approval sanction or authorisation of any
vestry shall be required in respect of any act of the Corporation
as the Burial Board.

(2) The added area shall cease to form part of the Burial
Area.

(3) Nothing in this Order shall prejudice or affect any
right of burial which any parishioner or inhabitant of the added
area may have purchased prior to the commencement of this
Order in relation to any burial ground provided for the Burial
Area or any right of placing any monument tablet or gravestone
or any similar right which any person may have acquired prior
to the commencement of this Order in relation to any such
burial ground.

(4) The liability of the added area for the repayment of
any moneys borrowed for the purposes of the Burial Acts in
respect of the Burial Area and for the payment of interest on
such moneys shall be a matter for adjustment under Section 62
of the Act of 1888 :

Provided that nothing herein contained shall prejudice
or affect any mortgage or other security which may have been
given in respect of any moneys so borrowed or the rights and
powers of the persons entitled under such mortgage or other
security to enforce the same as if this Order had not been made.

(5) Nothing in this Order shall prejudicially affect any
right privilege authority or duty which immediately before the
commencement of this Order is exerciseable by or attaches to
any incumbent or sexton under the Burial Acts.

Differential
general
district rates.

26. During a period of fifteen years commencing on the
First day of April One thousand nine hundred and twenty-two the
total amount in the pound of the general district rates (including
any rate in the nature of a general district rate) in any financial
year to be levied in respect of any rateable hereditament in the
added area shall not exceed such an amount in the pound as
when added to the total amount in the pound for the year of
the poor rate the City rate and any other rate made by the
Corporation will cause the total amount in the pound of the
rates levied as aforesaid to exceed six shillings and ninepence.

PART III.

SUPPLEMENTARY PROVISIONS.

Liquidation
of current
debts and
liabilities.

27.—(1) The County Council the Rural Council and the
Wakefield Guardians shall before the commencement of this
Order issue such precepts or contribution orders as may be

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necessary to raise funds sufficient to defray all current debts and liabilities and the expenditure to be incurred before the First day of April One thousand nine hundred and twenty-two in respect of the added area.

A.D. 1921.

—
Wakefield
Order.

(2) The Overseers of the Poor of the existing Township of Lupset shall before the commencement of this Order make and levy such rate or rates as may be necessary to satisfy the requirements of any such precept or contribution order and also to raise funds sufficient to defray all current debts and liabilities incurred or to be incurred by such Overseers before the First day of April One thousand nine hundred and twenty-two.

(3) If default is made in complying with the provisions of this Article in respect of the added area then—

(a) If such default is in relation to the levy of any rate or the issue of any precept for the purposes of the Public Health Acts the Corporation may after the commencement of this Order make and levy in the added area a general district rate of such an amount in the pound as will be sufficient to defray such portion of the current debts liabilities and expenditure aforesaid as if the added area were the City and the provisions of the Public Health Acts relating to general district rates shall apply to any general district rate authorised by this Article ;

(b) If such default is in relation to the issue of any contribution order or precept or the levy of any rate for purposes other than those of the Public Health Acts in the added area the Overseers of the Poor of the Township of Lupset after the commencement of this Order may and on the receipt of a precept or contribution order from the Corporation or the Wakefield Guardians shall make and levy over the added area a separate rate in the nature of a poor rate of such an amount in the pound as will be sufficient to meet the precept or contribution order and defray all current debts and liabilities and expenditure aforesaid which are chargeable on the poor rate as if the added area were a separate parish.

(4) Except as provided by this Article a rate shall not be made after the commencement of this Order and before the First day of April One thousand nine hundred and twenty-two in the added area.

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Order.*

Adaptations
of provisions
as to adjust-
ment.

28. For the purposes of the application of Section 62 of the Act of 1888 to any adjustment which may become necessary in consequence of this Order that section shall have effect—

- (a) As if in subsections (5) (6) and (7) thereof the expression "Council" included any authority affected by this Order or by anything done in pursuance of this Order; and
- (b) As if in the case of any such authority not otherwise empowered to borrow under any Act or on any security or in any manner mentioned in the said subsection (6) that subsection empowered the authority to borrow under any Act relating to and conferring on the authority a power to borrow on the security of all or any of the funds rates and revenues of the authority and in the manner provided by the said Act but without the consent of any other authority and subject to the requirement that all money so borrowed shall be repaid within such period as the Minister may sanction.

Compensa-
tion to exist-
ing officers.

29.—(1) Every clerk to justices and every officer or servant of or paid by the County Council or of or paid by the Standing Joint Committee of the County and every other officer or servant who by virtue of this Order or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary and for whose compensation no other provision is made by any enactment for the time being in force and applicable to his case shall be entitled to have compensation paid to him by the Corporation for that pecuniary loss.

(2) In determining the compensation payable to any person who becomes entitled to compensation in pursuance of this Article regard shall be had to the conditions and circumstances mentioned in subsection (1) of Section 120 of the Act of 1888 and the compensation shall not exceed the limit therein mentioned.

(3) Any compensation payable to any officer or servant whose office or employment relates wholly or partly to sanitary purposes as defined by the Public Health Act 1875 shall be paid out of the district fund and general district rate of the City and in every other case out of the city fund and city rate of the City and the provisions of subsections (2) to (7) of Section 120 of the Act of 1888 shall apply with the necessary modifications.

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(4) The non-acceptance of any office shall not be a bar to the right of any officer to compensation. A.D. 1921.

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Order.*

(5) For the purposes of subdivision (1) of this Article any clerk to justices or officer or servant to whom that subdivision applies and whose services are dispensed with or whose salary is reduced by the County Council or the Standing Joint Committee or any other authority including the Corporation within five years from the commencement of this Order because his services are not required or his duties are diminished in consequence of this Order and not on the ground of misconduct shall be deemed to have suffered a direct pecuniary loss in consequence of this Order.

(6) No person shall be entitled to claim or receive both compensation for any direct pecuniary loss by abolition of office or diminution or loss of fees or salary and a superannuation or retiring allowance in respect of the same period of service and the same pecuniary loss.

30. Subject to the provisions of this Order any powers and duties transferred by or under the Act of 1894 to the Parish Meeting of the existing Township of Lupset shall so far as regards the added area be vested in and imposed on the persons and authorities in whom they would be vested or on whom they would be imposed if such area had been included in a parish in the existing City on the appointed day within the meaning of the Act of 1894. Powers of Parish Meeting.

31.—(1) Subject to the provisions of the Ossett (Extension) Order 1921 and to any future revision the basis or standard of the county rate of the County shall be altered by the omission therefrom of any reference to the Township of Lupset. County rate basis.

(2) For the purpose of the preparation of any order for county contributions to be issued after the commencement of this Order this Article shall operate from the date of the Act of Parliament confirming this Order.

32.—(1) The Township of Lupset shall continue to be represented on the Wakefield Board of Guardians by one Guardian. Guardians and Rural District Councillors.

(2) The person who immediately before the commencement of this Order holds office as Rural District Councillor and Guardian for the existing Township of Lupset shall cease to act as Rural District Councillor but shall be deemed to have been elected as Guardian for the Township of Lupset and

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Wakefield Extension) Act, 1921.

A.D. 1921. shall continue in office as Guardian until the date on which
 ————— he would have retired if this Order had not been made.

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Order.*

(3) The total number of Councillors for the Rural District shall be reduced by one.

Arrears of
rates.

33.—(1) All arrears of rates made by the Overseers of the Poor of the existing Township of Lupset and due or owing at the commencement of this Order shall be collected and recovered by the Overseers of the Poor of the Township of Lupset.

(2) All arrears of rates made by the Overseers of the existing Township of Lupset for the purposes of the Public Health Acts or for highway expenses and collected in respect of hereditaments in the added area shall be applied towards the discharge of any precept of the Rural Council which at the commencement of this Order shall be in force and not satisfied and the balance if any shall be paid to the Corporation.

Duplicate
entries in
electors
lists.

34.—(1) The Registration Officer of the Parliamentary County of the West Riding of Yorkshire shall on publication of the electors lists for each registration unit comprising the added area supply the Registration Officer of the Parliamentary Borough of Wakefield with a sufficient number of copies of those lists.

(2) Except as otherwise provided in this Article it shall be the duty of the Registration Officer of the Parliamentary Borough to issue such notices and otherwise to take such steps as are required by Rule 23 in the First Schedule to the Act of 1918 in order to secure that no person is registered as a local government elector in respect of more than one qualification in the City for the purpose of City council elections or in the Township of Sandal Magna or Lupset or in any ward of the Parish of Wakefield for the purpose of guardians elections.

(3) Where the Registration Officer of the Parliamentary Borough considers (whether on account of an expression of choice by a person affected by a duplicate entry or otherwise) that any correction required for the purpose aforesaid should be made in the electors lists of any registration unit comprising any part of the added area he shall forthwith notify the Registration Officer of the Parliamentary County and that officer shall make such correction accordingly.

Provision as
to register
of electors.

35.—(1) For the purposes of the register of local government electors of the City prepared next after the commencement of this Order in pursuance of the Act of 1918 and of all

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matters connected with incidental to or consequent upon those purposes the added area shall be deemed to have formed part of the City as from the first day of the qualifying period for that register.

A.D. 1921.

Wakefield
Order.

(2) In the preparation of the autumn register for the year One thousand nine hundred and twenty-one in pursuance of the Act of 1918 so far as it relates to any area affected by this Order it shall be competent to the Registration Officer of the Parliamentary County to frame the register in separate parts for each area which will constitute a registration unit from and after the commencement of this Order instead of in separate parts for each area constituting a registration unit before the commencement of this Order.

(3) If any register of local government electors for any area affected by this Order is not so framed as to show the persons entitled to vote at an election to be held for any parish or ward or other electoral division the Town Clerk in the case of an election for a parish or ward or other electoral division within the City and the Registration Officer of the Parliamentary County in the case of an election for a parish or ward or other electoral division outside the City shall make such alteration or re-arrangement of the register as may be necessary for the purposes of such election.

(4) It shall be the duty of the Overseers to render such assistance as may be required by the Town Clerk of the City or Registration Officer of the Parliamentary County for the purpose of such alteration or re-arrangement.

(5) Where in the opinion of the Secretary of State the circumstances so require he may make such order as appears to him to be necessary to give effect to the provisions of this Order and may vary so far as is requisite the provisions in force with regard to the lists and registers of electors.

36.—(1) Any action or proceeding or any cause of action or proceeding which at the commencement of this Order is pending or existing by or against the Rural Council in relation exclusively to the added area shall not be in anywise prejudicially affected by reason of the making of this Order but may be continued prosecuted and enforced by or against the Corporation.

Actions &c.
 not to abate.

(2) All contracts deeds bonds agreements and other instruments (subsisting at the commencement of this Order) entered into or made by the Rural Council or their predecessors

Saving for
 contracts &c.

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A.D. 1921. in relation exclusively to the added area shall be of as full force
Wakefield and effect against or in favour of the Corporation and may be
Order. continued and enforced as fully and effectually as if instead
of the Rural Council or their predecessors the Corporation
had been a party thereto.

Saving for 37. Notwithstanding the alteration of areas made by this
contribution Order all contribution orders or precepts issued or made before
orders and the commencement of this Order shall be as valid as if this
precepts. Order had not been made.

Saving for 38. Nothing in this Order shall be construed as restricting
powers of the the powers of the Minister under the Acts relating to the Relief
Minister the of the Poor or the powers of the Minister the County Council or
County Coun- the Corporation under the Act of 1888 or the Act of 1894.
cil or the Corporation.

Parliamen- 39. Nothing in this Order shall affect the powers of the
tary polling County Council under Section 31 of the Act of 1918 or any
districts. order or scheme made by the County Council for the division of
the Parliamentary County of the West Riding of Yorkshire into
polling districts and the appointment of polling places for
parliamentary elections.

Ecclesiastical 40. Nothing in this Order shall affect the ecclesiastical
divisions and divisions of any parish or shall prejudice vary or affect any
charities. right interest or jurisdiction in or over any charitable
endowment.

Orders under 41. Any order under the Wild Birds Protection Acts 1880
the Wild to 1908 which is in force at the commencement of this Order
Birds in the existing City shall extend to the added area and any
Protection order under those Acts which is then in force in the County
Acts. shall cease to extend to the added area.

Short title. 42. This Order may be cited as the Wakefield (Extension)
Order 1921.

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The SCHEDULE.

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PART I.—LOCAL ACTS.

Session and Chapter.	Title or Short Title.
25 & 26 Vict. c. xcix.	- The Wakefield Waterworks Act 1862.
36 Vict. c. xix.	- The Wakefield Waterworks Act 1873.
37 & 38 Vict. c. cxci.	- The Wakefield Waterworks Act 1874.
39 & 40 Vict. c. ccxxii.	- The Wakefield Waterworks Act 1876.
40 & 41 Vict. c. cxviii.	- The Wakefield Improvement Act 1877.
43 & 44 Vict. c. lvii.	- The Wakefield Corporation Waterworks Act 1880.
50 & 51 Vict. c. lxxi.	- The Wakefield Corporation Act 1887.
52 & 53 Vict. c. lxviii.	- The Wakefield Corporation Act 1889.
57 & 58 Vict. c. xcix.	- The Wakefield Corporation Water Act 1894.
62 & 63 Vict. c. ccxlv.	- The Wakefield Corporation Act 1899.
63 & 64 Vict. c. lxxx.	- The Wakefield Corporation Market Act 1900.
9 Edw. 7. c. xliii.	- The Wakefield Corporation Act 1909.
6 & 7 Geo. 5. c. xx.	- The Wakefield Corporation Act 1916.

PART II.—CONFIRMATION ACTS.

(A.)

Session and Chapter.	Short Title.	Order relating to Wakefield thereby confirmed.
16 Vict. c. xxiv.	The Public Health Supplemental Act 1853 (No. 1).	The Order dated 20th November 1852.
41 & 42 Vict. c. clxii.	The Local Government Board's Provisional Orders Confirmation (Bournemouth &c.) Act 1878.	The Order dated 7th May 1878.
59 Vict. c. xliii.	The Local Government Board's Provisional Order Confirmation (No. 19) Act 1895 Session 2.	The City of Wakefield Order 1895.
63 & 64 Vict. c. clxxxi.	The Local Government Board's Provisional Orders Confirmation (No. 12) Act 1900.	The Wakefield Order 1900.
1 Edw. 7. c. cxlviii.	The Local Government Board's Provisional Orders Confirmation (No. 6) Act 1901.	The Wakefield Order 1901.
9 Edw. 7. c. cxxii.	The Local Government Board's Provisional Orders Confirmation (No. 7) Act 1909.	The Wakefield (Extension) Order 1909.

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Session and Chapter.	Short Title.	Order relating to Wakefield thereby confirmed.
10 Edw. 7. and 1 Geo. 5. c. lxxxiii.	The Local Government Board's Provisional Orders Confirmation (No. 6) Act 1910.	The Wakefield (Amendment) Order 1910.
4 & 5 Geo. 5. c. clxxxii.	The Local Government Board's Provisional Order Confirmation (No. 3) Act 1914.	The County Borough of Wakefield Order 1913.
10 & 11 Geo. 5. c. cxiv.	The Ministry of Health Provisional Orders Confirmation (No. 7) Act 1920.	The Wakefield Order 1920.

(B.)

Session and Chapter.	Short Title.	Order relating to Wakefield thereby confirmed.
57 & 58 Vict. c. cxiv.	The Electric Lighting Orders Confirmation (No. 3) Act 1894.	The Wakefield Corporation Electric Lighting Order 1894.

Given under the Official Seal of the Minister of Health this
Second day of May One thousand nine hundred and
twenty-one.

(L.S.)

F. J. WILLIS
Assistant Secretary Ministry of Health.

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